

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

BRANDI RODGERS,
Appellant,

v.

CASE NO.: 2D2026-1666
L.T. No.: 2026CC001256CCAXES

SWEET LIVING, INC.,
Appellee.

APPELLANT'S RESPONSE TO ORDER TO SHOW CAUSE

(Response to this Court's Order of June 26, 2026)

Appellant, BRANDI RODGERS, appearing pro se, responds to this Court's June 26, 2026 order directing her to show cause why this appeal should not be dismissed for lack of jurisdiction, and states:

1. The order appealed. This appeal seeks review of the Final Judgment for Possession entered by the County Court of the Sixth Judicial Circuit in and for Pasco County, Florida (Hon. Kent Compton, County Court Judge) on June 18, 2026, in Case No. 2026-CC-001256 (Division 6-B). A copy of the Final Judgment is attached as Appendix A, curing the omission identified in the Court's order.
2. The notice of appeal was timely. Appellant filed her Notice of Appeal with the clerk of the lower tribunal on June 24, 2026 - six days after rendition of the Final Judgment - within the 30 days required by Florida Rule of Appellate Procedure 9.110(b). The lower tribunal clerk transmitted the notice to this Court, which acknowledged the new case on June 26, 2026 as "NOA Final - County Civil - Landlord/Tenant/Eviction (Residential)".
3. Any classification confusion originated in the transmittal, not the appeal. The lower tribunal clerk's Notice of Appeal Transmittal Form (DIN 50) noted that a copy of the order appealed did not accompany the notice. This Court's own Acknowledgment of New Case (DIN 51), however, correctly identified the matter as a county civil eviction appeal. A copy of the Acknowledgment is attached as Appendix B, and the order appealed is supplied as Appendix A, curing the transmittal omission.
4. This Court has jurisdiction. This is an appeal from a final judgment of a county court. Effective January 1, 2021, chapter 2020-61, Laws of Florida, amended section 26.012, Florida Statutes, to remove the circuit courts' general appellate jurisdiction over county court

judgments; appeals from county court final orders now lie in the district courts of appeal. See sec. 26.012(1), Fla. Stat.; Fla. R. App. P. 9.030(b)(1)(A); Fla. R. App. P. 9.110(a)(1). Jurisdiction of this appeal is therefore properly in this Court.

5. The reference to the circuit court in the notice was a pro se drafting error. Appellant's Notice of Appeal stated that she "appeals to the Circuit Court of the Sixth Judicial Circuit." That designation reflected Appellant's self-represented misunderstanding of the pre-2021 appellate routing, not an intent to invoke a different remedy. The notice in all other respects correctly identified the order appealed (the June 18, 2026 Final Judgment for Possession), the date of rendition, the lower tribunal and case number, and the parties, and it invoked Florida Rule of Appellate Procedure 9.110.

6. A misdesignation in the notice is not a jurisdictional defect requiring dismissal. Under Rule 9.040(d), "[a]t any time in the interest of justice, the court may permit any part of the proceeding to be amended so that it may be disposed of on the merits." Appellant respectfully requests leave to amend the notice of appeal to designate this Court, and on July 3, 2026 filed an Amended Notice of Appeal in the lower tribunal reflecting the correct court.

7. In the alternative, transfer - not dismissal - is the remedy. If this Court were to conclude that review lies elsewhere, Florida Rule of Appellate Procedure 9.040(b)(1) provides that "[i]f a proceeding is commenced in an inappropriate court, that court shall transfer the cause to an appropriate court." Dismissal would be improper where a timely notice of appeal was filed in the lower tribunal.

8. The filing fee is being addressed separately. Pursuant to this Court's separate June 26, 2026 order, Appellant is filing an Application for Determination of Civil Indigent Status with the clerk of the lower tribunal under section 57.081, Florida Statutes, and Rule 9.430, and will transmit the resulting certificate or order to this Court.

WHEREFORE, Appellant respectfully requests that this Court accept jurisdiction of this appeal, discharge the order to show cause, grant leave to amend the notice of appeal to the extent necessary, and permit this appeal to proceed on the merits; in the alternative, Appellant requests transfer to the appropriate court pursuant to Rule 9.040(b)(1) rather than dismissal.

Respectfully submitted,

/s/ Brandi Rodgers

BRANDI RODGERS, Appellant, pro se
13721 94th Avenue, Seminole, FL 33776
Telephone: (727) 621-6090

Email: brandisreallife@gmail.com

Dated: July 3, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on July 3, 2026, a true and correct copy of the foregoing, with Appendices A and B, was furnished by email to Keith William Wynne, Esq., The Law Office of Keith Will Wynne, Esq., 1001 E. Baker Street, Suite 101, Plant City, Florida 33563 (Keith@KeithWillWynne.com; Pleadings@KeithWillWynne.com), counsel for Plaintiff/Appellee.

/s/ Brandi Rodgers

BRANDI RODGERS, pro se

APPENDIX A

Final Judgment for Possession, Case No. 2026-CC-001256 (June 18, 2026)

IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT,
IN AND FOR PASCO COUNTY, FLORIDA

SWEET LIVING, INC.,
Plaintiff,
vs.

Case No.: 26-CC-001256
Division: 6-B

BRANDI RODGERS,
Defendant.

FINAL JUDGMENT FOR POSSESSION

THIS CAUSE came before the Court on June 18, 2026, on Plaintiff's Renewed Motion for Judicial Default and Motion for Final Judgment of Possession. Present before the Court were the following: Desmond Surujbali, owner of Sweet Living, Inc., Plaintiff; Keith William Wynne, Esq., counsel for Plaintiff; and Brandi Rodgers, Defendant. After hearing testimony, reviewing the court file and exhibits, hearing legal arguments, and otherwise being fully advised in the Premises, the Court finds as follows:

1. Defendant held valid title to the mobile home located on the subject premises. Defendant admitted purchasing the mobile home for \$18,000.00 dollars. Defendant signed her name as the buyer of the mobile home on the Transfer of Title by Seller section of the Certificate of Title but never transferred the Certificate of Title into her name with the Department of Motor Vehicles. *See Green Tree Acceptance, Inc. v. Zimmerman*, 611 So.2d 608 (Fla. 2d. DCA 1993).

2. Plaintiff actively attempted to negotiate with the Defendant, but Defendant refused.

3. At 3:04 p.m., Defendant voluntarily left the courtroom and refused to provide any argument or defense. The Court offered the Defendant a five-minute break, however, the Defendant refused and left the courtroom.

4. Defendant failed to deposit the past due and ongoing rent into the registry of the court as required by law. Therefore, a judicial default is entered against the Defendant.

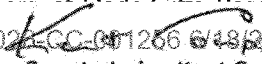
It is therefore ORDERED and ADJUDGED that:

- A. Plaintiff's Motion for Judicial Default is GRANTED.
- B. Plaintiff's Motion for Final Judgment is GRANTED.
- C. Any motion previously filed by the Defendant has been abandoned by the Defendant.
- D. Judgment is hereby entered against the Defendant herein and the Plaintiff does have and

recover of and from the Defendant/Tenant, BRANDI RODGERS, possession of the premises situated in the County of Pasco, State of Florida, described as: 3929 Argyle St., Zephyrhills, FL 33542, and the Clerk of this Court shall issue a Writ of Possession under the Seal of this Court directed to the Sheriff of Pasco County, Florida, describing the premises and commanding him to put the Plaintiff/Landlord, in possession of said premises.

WRIT OF POSSESSION SHALL issue ten (10) days after the date of the signing of this Judgment.

DONE AND ORDERED, in chambers of the Court, this ____ day of June 2026.


2026-CC-001256 6/18/2026 5:00:53 PM
County Judge Kent Compton
2026-CC-001256 6/18/2026 5:00:53 PM

Kent Compton, County Judge

Copies to:

Keith William Wynne, Esq.,
The Law Office of Keith Will Wynne, Esq.
1001 E. Baker Street Suite 101
Plant City, Florida 33563
Email: Keith@KeithWillWynne.com;
Pleadings@KeithWillWynne.com
Attorney for Plaintiff

Brandi Rodgers
13721 94th Ave.
Seminole, FL 33776
Email: brandisreallife@gmail.com
Defendant

APPENDIX B

Acknowledgment of New Case, Second DCA, No. 2D2026-1666 (June 26, 2026)



DISTRICT COURT OF APPEAL OF FLORIDA, SECOND DISTRICT

525 Mirror Lake Drive N.
St. Petersburg, FL 33701
(727) 610-3741

ACKNOWLEDGMENT OF NEW CASE

June 26, 2026

BRANDI RODGERS,
APPELLANT(S),
V.

CASE NUMBER:
2D2026-1666

SWEET LIVING, INC.,
APPELLEE(S).

The Second District Court of Appeal has received a case initiation document reflecting a filing date of June 24, 2026. The county of origin is Pasco County.

The lower tribunal case number is 2026CC001256CCAXES.

The filing fee is: Fee Owed

Case Type: NOA Final - County Civil - Landlord/Tenant/Eviction (Residential).

The Second District Court of Appeal's case number must be used on all pleadings filed in this case.

Please review and comply with any handouts enclosed with this acknowledgement letter.

LS

cc:
PASCO CLERK

BRANDI RODGERS
KEITH WILL WYNNE

**UNOFFICIAL
DOCUMENT**

SECOND DISTRICT COURT OF APPEAL

NOTICE TO ATTORNEYS AND PARTIES

Rules of procedure for cases in the District Court of Appeal

Cases in this court are governed by the Florida Rules of Appellate Procedure and by the Florida Rules of General Practice and Judicial Administration. Consult the most recent versions of the rules on The Florida Bar's website.

<https://www.floridabar.org/rules/ctproc/>

Best Practices

In addition to the rules of court, a great deal of guidance about appellate practice before the Second DCA will be found in the court's Practice Preferences posted on the website. <https://2dca.flcourts.gov/Practice-and-Procedures/Practice-Preferences> You are encouraged to review the rules and the practice preferences carefully.

Confidential and Sensitive Information in Court Filings

Filings in most cases are available to the public upon request, and filers are responsible for protecting confidential and sensitive information in court filings by complying with Florida Rules of General Practice and Judicial Administration

- 2.420 Public Access to and Protection of Judicial Branch Records
- 2.423 "Marsy's Law" Crime Victim Information Within Court Filing, and
- 2.425 Minimization of the Filing of Sensitive Information.

Related Cases

Attorneys and self-represented parties must advise this court of related cases currently pending or recently decided. See appellate rule 9.380 for information and rule 9.900(k) for a form.

Child Custody Cases

Attorneys and self-represented parties must file a separate "Notice of Custody or Visitation Issue" if child custody or visitation is an issue in the case. The court expedites such appeals.

E-Filing and Fee Payments

All attorneys must file electronically via the Florida Courts e-Filing Portal; self-represented parties may file electronically via the e-Filing Portal. [Florida Courts E-Filing Portal | File Court Documents Online \(myflcourtaccess.com\)](#) Electronic fee payments may also be submitted via the e-Filing Portal.

Service on Opposing Counsel and Self-Represented Parties

A copy of every filing in this court must be served on all attorneys or self-represented parties in a case. The filing must contain a certificate of service stating that this has been done and providing the name of the person(s) served; mailing address; address used for service; and if an attorney, the party they represent.

Additional Information

The court's opinions, case information, and additional information can be found on the court's website, <https://2dca.flcourts.gov>, and by calling the clerk's office, (727) 610-3741.